

HEADNOTE

“1. According to R. 262A.6 RoP, the number of persons to whom access to information requiring confidentiality is granted shall not be greater than is necessary to ensure the parties' right to an effective remedy and fair proceedings, whereby the circle of persons entitled to access must include at least one natural person of each party as well as their respective attorneys or representatives.

2. In principle, it is for each party to designate the persons for whom it seeks access. If it does so, the exclusion of a person cannot be justified solely on the grounds that the designated person is active in the technical field related to the patent in question. For precisely this reason, the person in question is often the first to be able to provide their company and its representatives with the information necessary for effective enforcement of rights. The information classified as confidential remains protected despite such access. Even if the persons concerned have access to the information in question, they must observe the confidentiality obligations imposed upon them, which, if necessary, can be enforced through the imposition of penalties for non-compliance or executed under national law.

4. Since the circle of persons to whom access to the (allegedly) confidential information is granted must not exceed the scope necessary to ensure the parties' right to an effective remedy and fair proceedings, the circle of persons entitled to access must always be subject to a case-by-case examination and, if necessary and appropriate, adapted to the requirements of the respective proceedings.”

COURT

Local Division in Düsseldorf

PROCEEDINGS

Procedural order

PATENT

EP 2 697 391 B1

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Trade secret protection

Trade secret protection request

Trade secrets

Section 262A request

Trade secret protection order

Expedited proceedings

Rule 262A

Protection of Confidential Information

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, access to confidential information in proceedings must be limited to the minimum number of persons necessary to protect each party's right to a fair trial, which must include at least one natural person from each party and their legal representatives. Parties generally have the right to designate which persons should receive access to confidential information, and the mere fact that a designated person works in the technical field related to the patent cannot alone justify refusing that access. The confidentiality protections remain legally binding on all persons granted access, and breaches can be enforced through penalties under applicable law. Since the circle of permitted access must remain proportionate to the needs of each specific case, courts must examine and adjust the list of persons with access as the proceedings develop and circumstances change.